



And...Was That Your Mother's Mother?

A Discussion On This Delicate Subject

The pervasiveness of non-Jewish participation in Chabad House programs and the matters borne out of inter-dating and intermarriage are not a new parsha to shlichim. Though there could be no definitive text book to walk a shliach through the colossal task of being the “nice guy” without, chas v'shalom, stepping out of the confines of halochah, this article synthesizes experiences of fellow shlichim and can serve as a source of encouragement in this matter.

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Hannah* signed up her daughter Becky* to our preschool many years ago. During our preliminary meeting with her, Hannah mentioned that she had undergone a non-orthodox conversion to Judaism in her twenties. Hannah accepted my bombshell regarding her status relatively calmly and expressed interest in pursuing giyur kahalochah. As she would be working toward full Jewish observance, we accepted her daughter into our preschool and subsequently into our Hebrew school. After a number of years, Hannah seemed to have lost her commitment to giyur and moved to a different country. Last year, we found out that Becky had just married a Jewish young man at a ceremony conducted by a modern-orthodox rabbi in her city. When I called the rabbi to find out more details, he said, “Becky always speaks of the years she spent at your Hebrew school with such high regard. Knowing that she had attended a Chabad school for so many years, I had no doubt that she was Jewish....”

**Names changed to protect privacy.*

VERIFICATION OF JEWISHNESS

Rabbi Moshe Gutnick, senior dayan on the Sydney Beth Din who guides and assists shlichim on these matters throughout Australasia, states that when a new person wishes to become part of his Chabad House, it is imperative that a shliach make it his business to verify the person's Jewishness as soon as practicable. If the setting through which the shliach meets the new person does not immediately allow for such a conversation, it is crucial that he create a situation that will allow him to do so soon thereafter. Though most of the time a few simple questions will clearly determine the Jewish status of the person standing in front of him, shlichim should be prepared for the possibility of complications.

Rabbi Falik Schtroks, shliach to Surrey, British Columbia, suggests one easy way to begin the verification process: asking the person about his family and where they are from. Many times, this will elicit comments such as, "My zaida was from..." or "My babba used to..." allowing the shliach to quickly verify, "Oh, so is that your babba from your mother's side or your father's side?" In absence of such feedback, a shliach must get himself used to taking the plunge and asking, "Was your mother born Jewish?" Of course, such a conversation is not sufficient to confirm Jewishness halachically; affirmation needs to be obtained via a *birur Yahadus* through a competent *rov* or *bais din*.

Much of the time, a few phone calls may be all it takes to verify someone's Jewishness. However, in the event that the person's Jewish status is not confirmed, it is important to face the challenge head-on and schedule a face-to-face meeting to discuss the matter openly. Rabbi Gutnick encourages shlichim to take this significant step in the right direction; the sooner this is done, the easier it will be. Of course, the opposite is also true.

THE NEED FOR SENSITIVITY

A face-to-face meeting is the best way to go about such a delicate and crucial conversation. Some suggest forewarning the person as to the nature of the scheduled meeting. "There is something very sensitive that I need to discuss with you," the shliach can tell the person. "Perhaps we ought to sit together and talk about it."

"One way to start this discussion is by empowering the individual," suggests Rabbi Yisroel Leib Resnick, shliach to Pleasanton, California. "The notion that G-d only presents a person with a challenge that he or she can overcome is a very effective opening. Many good stories and anecdotes help drive this message home.

Continues Rabbi Resnick, "I usually tell them that this is probably one of the most difficult conversations I will ever have. I want the individual to know that what I'm about to say isn't easy for me, either, and that I don't do it callously." Rabbi Resnick suggests that the shliach then attempt to

PRESENT-DAY POLICIES OF THE RABBANUT HARASHIT

Rabbi Yehoram Ulman, senior dayan to the Sydney Beth Din, explains:

When Rabbi Shlomo Amar assumed his post as Chief Rabbi of Israel in 5763, he set out to restore standards and consistency to the unfortunate *hefkeirus* that had become prevalent with regard to *gairus* in many communities around the globe. He put together a small list of *botei din* outside of Eretz Yisroel that he personally trusted and accepted, limiting the rabbanut's acceptance of *gairim* to those who had converted through the listed *botei din*. He traveled around the world for the purpose of expanding his list, but the list still remains small. Rabbi Amar's move has generated tremendously positive results, reinforcing the standards and accountability that are so necessary in ensuring the future of Klal Yisroel.

So as not to unduly compromise candidates, Rabbi Ulman strongly recommends that, when for the purpose of *gairus*, shlichim connect with a *bais din* that is accepted by the Rabbanut HaRashit. As the Rabbanut HaRashit oversees all marriages and divorces in Eretz Yisroel, only *giyur* conducted by a *bais din* that's been approved by the Rabbanut HaRashit will be accepted for those purposes.

Rabbi Ulman can be contacted to verify a *bais din*'s acceptance by the Rabbanut HaRashit. See page 35.

convey the notion that being a Jew is an objective reality. "I always say, 'If defining who is Jewish were up to me, I would put you and your children at the top of my list. But it's not. The Torah itself defines this reality, not me or you or a specific denomination of the Jewish People or even the State of Israel.'"

Rabbi Schtroks recalls that Rabbi Moshe Bryski, shliach to Agoura Hills, California, once put it very well: A shliach must realize that when someone thinks that he, his wife, or his children are Jewish and then is told that they are not, he and his whole world have been utterly crushed, and at that moment, he might not believe that the pieces will ever be put back together again. The shliach must put himself into the shoes of the person sitting before him and sincerely feel for him and his devastation, clearly expressing empathy and ensuring that the person feel that the rabbi truly shares in his distress. This sensitivity needs to be maintained throughout, despite any negativity that may be thrown in the shliach's direction thereafter.

While others may find more comfortable ways to broach the issue, Rabbi Resnick has seen that, in the right context,

conveying a true, straightforward, and honest perspective has ultimately strengthened his relationships, gained him more respect, and even precipitated a few families to begin the journey towards giyur kahalocho.

As with all mitzvos, when a shliach stands his ground with an equally consistent measure of firmness and sensitivity, his efforts will most certainly pay off, even if it takes a number of years to see the turnaround. Rabbi Schtroks reports that his many years of sensitivity while staying true to halocho have resulted in congregants slowly beginning to refrain from asking him to conduct or participate in matters that disagree with halachic standards. “It can be very difficult to have The Conversation,” admits Rabbi Resnick, “especially when the family is very involved and influential in the community or mosod. But it is well worth it.”

STICKING TO POLICY

While there may be unique exceptions, the general policy of the Sydney Beth Din is that non-Jewish children and adults are not to be accepted in any formal Chabad House programs, such as Hebrew school or gan, unless they have been converted in accordance with halocho or are formally participating in a conversion program under the direction of the bais din. Accepting such a person, especially a child, misleads the person himself, as well as those around him, into believing that he may in fact be Jewish when he is not and, in the case of a non-orthodox conversion, may give the impression that such a conversion is acceptable, when we know that categorically it is not.¹ If a shliach, chas v’sholom, compromises on halachic standards, this can only be detrimental to his shlichus and to the shlichus of other shluchim, leaving them to deal with the travesty of a person being correctly denied privileges at one Chabad House and then being allowed them at another.

“This doesn’t mean we shouldn’t help these individuals,” cautions Rabbi Gutnick, “but the way we help them is not by hiding the truth.” The role of shluchim is to guide each person along his *own* specific path. Once a birur Yahadus has been made by a competent authority and it has been determined that the person is not Jewish, Rabbi Gutnick advises that the shliach explain the viability, as well as realities, of giyur kahalocho to members of intermarried families, especially those with children. At the same time, should they decide to remain non-Jewish, the shliach should maintain his position to them as spiritual mentor.

BEING CONNECTED WITH A REPUTABLE BAIS DIN

Rabbi Gutnick cannot stress enough how important it is for a shliach to attach himself to a recognized bais din from whom he gets advice and that he not make decisions on his own. Under no circumstances should a shliach engage on his own in anything to do with conversion. “A person needs to be thoroughly knowledgeable in all the halochos related to gairus and ordained to serve that position,” explains Rabbi Gutnick. “With the exception of specific individuals whom the Rebbe instructed to sit on botei din of gairus, the Rebbe strongly discouraged shluchim from getting involved.”

In addition, being able to say that this is the bais din’s policy makes it easier for a shliach to maintain strict standards without the pressure of it all being on his head. In fact, binding himself to the regulations of an outside bais din aids the shliach in being able to convey to the person that the shliach is “on his side.” “It’s between you and the rabbinical council,” he can tell the person. “I don’t make their decisions, but I’ll be glad to help you meet their requirements.”

IN PREPARATION FOR GIYUR KAHALOCHO

Regardless of the bais din being used, it is imperative that the shliach prepare any candidates for the rigors of the process as well as confirming and re-confirming the candidate’s commitment to the Torah and all the mitzvos. Rabbi Gutnick states that the Sydney Beth Din, with many other reputable botei din, insists upon conversion candidates living a considerable amount of time as fully observant Jews before allowing conversion.

How is a shliach to know whether the prospect under his care is truly ready for giyur? Rabbi Schtroks has decided that he can be honest with himself in front of the Aibershter by “putting his mouth where his mouth is.” He has made the personal commitment that upon successful completion of gairus, he will have that individual pour him some non-

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